



Republic of the Philippines
Province of Surigao del Sur
MUNICIPALITY OF CARMEN

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BY: *MA. JULINA B. JUTILO*
SB SECRETARY

TANGGAPAN NG SANGGUNIANG BAYAN

EXCERPTS FROM THE MINUTES OF THE 95TH REGULAR SESSION OF THE 13TH SANGGUNIANG BAYAN OF CARMEN, SURIGAO DEL SUR HELD AT THE MUNICIPAL SESSION HALL ON SEPTEMBER 17, 2024

PRESENT:

Hon. Harvey S. Manawatao Municipal Vice-Mayor/
Presiding Officer

REGULAR SANGGUNIANG BAYAN MEMBERS:

Hon. Carlos S. Estrada SB Member
Hon. Nilo S. Bigno SB Member
Hon. Renato A. Calañas SB Member
Hon. Michael C. Escuyos SB Member
Hon. Carmelito E. Valeroso SB Member
Hon. Elvie U. Ohao SB Member
Hon. Tanie A. Quillano SB Member

EX-OFFICIO MEMBER:

Hon. Jeff Anthony D. Beloria SK Federation President

ON LEAVE:

REGULAR SANGGUNIANG BAYAN MEMBER:

Hon. Rencio P. Valeroso SB Member

EX-OFFICIO MEMBER:

Hon. Blandena V. Sugian ABC President

SECTORAL REPRESENTATIVE:

Hon. Ricardo S. Iligan IP Mandatory Representative

ORDINANCE NO. 20
Series of 2024

"AN ORDINANCE APPROVING THE ESTABLISHMENT OF NEW PUBLIC CEMETERY AND PRESCRIBING GUIDELINES FOR ITS USE, ACQUISITION, OPERATION AND MAINTENANCE INCLUDING THE COLLECTION OF FEES AND CHARGES, AND IMPOSING PENALTIES FOR VIOLATIONS THEREOF"

Author: Hon. Carmelito E. Valeroso

Enacted: All Members present

EXPLANATORY NOTE

The Municipal Economic Enterprise Development Office (MEEDO) of Carmen, Surigao del Sur aims to establish, develop, operate, maintain and manage sustainable Municipal Economic Enterprise

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to generate revenue and enhance the delivery of public services pursuant to the economic and social objectives of the municipality.

Consistent with local autonomy and decentralization as mandated under RA No. 7160 also known as the Local Government Code of 1991, Local Government Units shall endeavor to be self-reliant and shall exercise such powers and discharge such other functions and responsibilities for the provision of basic services and facilities.

In consonance with Section 18 of the Local Government Code, the Municipality shall create their own sources of revenues and to levy taxes, fees, and charges which shall accrue exclusively for their use and disposition and which shall be automatically and directly released to them without need of any further action.

BE IT ORDAINED, by the Sangguniang Bayan of Carmen, Surigao del Sur, in a session assembled, that:

Section 1. TITLE - This Ordinance shall be known as the New Public Cemetery of Carmen, Surigao del Sur.

Section 2. COVERAGE -

- a) Provisions of this ordinance shall govern the establishment, classification, administration, and operation of the New Public Cemetery (Memorial Park) of Carmen, Surigao del Sur.
- b) To establish a self-reliant and viable eco enterprises, through the operation of Public Cemetery equipped with facilities for the services of the buying public.

Section 3. DEFINITION OF TERMS - The following terms shall be understood in the sense indicated below:

- 1) Local Government- shall refer to the Municipal Government of Carmen.
- 2) Lot- shall refer to a specific piece of land in the cemetery that is designated for the burial of human remains.
- 3) Readymade tomb- shall refer to a burial structure that has been designed, constructed, and made available for lease before an individual's death.
- 4) Underground readymade tomb- shall refer to a burial structure that is located beneath the ground level.
- 5) Compartment readymade tomb- shall refer to a burial structure that contains multiple separate compartments or chambers designed to house the remains of multiple individuals with each section serving as an individual burial niche.
- 6) New Public Cemetery of Carmen, Surigao del Sur- shall refer to a tranquil, landscaped area that integrates traditional burial sites with park-like features such as gardens, walking paths, and memorial monuments. It provides a peaceful environment for honoring and remembering those who have passed away.
- 7) Burial Rights or Interment Rights- shall mean an easement or license sold by the Local Government Unit of Carmen authorizing the use of a specific grave(s), crypto(s) or niche(s) for the interment of human remains. The Local Government Unit of Carmen sells only the right to use the designated space for interment purposes and retains the ownership of the physical grave, crypt or niche.



Section 4. OFFICERS OF THE PUBLIC CEMETERY - The Officers of the Public Cemetery are as follows:

- 1) Cemetery Committee- the designated officials shall serve as the governing body, making decisions related to cemetery operations, budget, policies, and long-term planning.
- 2) MEEDO- implementing office responsible for developing policy reforms, programs, and projects. It will also propose potential legislative measures to the Sangguniang Bayan, addressing ongoing and emerging issues and planning future actions related to economic enterprise and service delivery.
- 3) Administrative Staff- shall handle office tasks, maintain burial records, coordinate services, and assist families with burial arrangements
- 4) Finance/Treasurer- the Municipal Treasurer who shall be responsible for managing the cemetery's financial matters
- 5) Job Order- shall be responsible for maintaining the cemetery grounds, including landscaping, gardening, and grave preparation for burials
- 6) Laborer- shall be responsible for covering the tomb and planting grass

Section 5. PUBLIC CEMETERY COMMITTEE - The Public Cemetery Committee is already created composed of the following:

- Chairman: - Municipal Planning Development Coordinator
- Vice Chairman: - Municipal Assessor
- Members: - MEEDO- designate
Municipal Treasurer
Municipal Engineer
SB Chairman Committee on Finance, Appropriations, Ways and Means and Economic Enterprises

Section 6. DUTIES AND RESPONSIBILITIES - The Public Cemetery Committee and Lessee shall perform the following duties and responsibilities:

PUBLIC CEMETERY COMMITTEE:

- 1) Shall be responsible for the overall management and administration of the public cemetery, ensuring that it is well-maintained and operates efficiently.
- 2) To develop and implement policies and guidelines for cemetery operations, including rules for burials, memorial services, and cemetery use.
- 3) To maintain accurate records of cemetery plots, burials, and other services provided. This includes ensuring that burial records are properly documented and easily accessible to the public.
- 4) To manage and plan the allocation of cemetery land for current and future burials, involves ensuring that the cemetery has adequate space to accommodate future needs.
- 5) To ensure that the cemetery grounds and facilities are well-kept and presentable. This includes landscaping, regular maintenance, and repair of structures.



- 6) To implement measures to ensure the safety and security of visitors, employees, and cemetery property. This may involve surveillance, fencing, and lighting installations.
- 7) To ensure that cemetery operations adhere to environmental regulations and guidelines, especially concerning waste management and water usage.
- 8) To maintain good relations with the community and addressing any concerns or feedback from the public regarding cemetery services or operations.
- 9) To assess the need for cemetery expansion and developing plans for acquiring additional land or constructing new facilities if necessary.
- 10) To ensure that the cemetery is compliant with local, state, and federal laws and regulations regarding cemetery operations.
- 11) To provide information to the public about cemetery services, burial options, and available resources.
- 12) To perform additional tasks as approved by the Local Chief Executive and the Sangguniang Bayan to ensure the smooth and efficient administration of the Carmen Memorial Park.

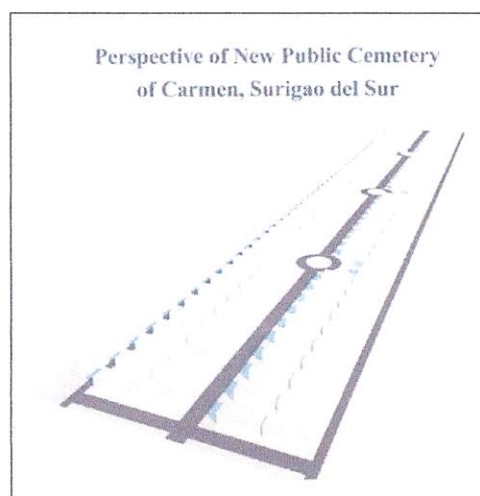
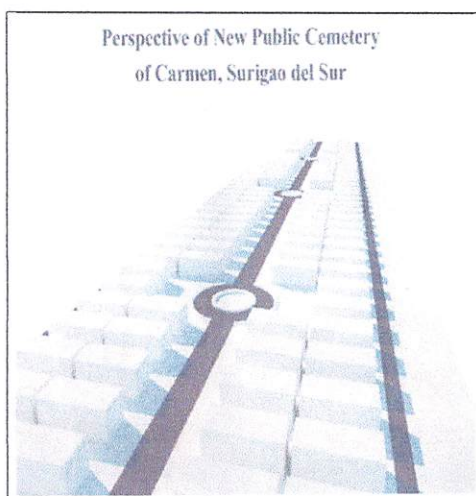
BURIAL RIGHTS HOLDERS:

The Burial Rights Holder shall:

- 1) Maintain the cleanliness of the surroundings.
- 2) Ensure that no waste is left in the area and shall dispose of all waste in designated garbage receptacles.
- 3) Pay fees in a timely manner.
- 4) Manage decorations, including floral arrangement.
- 5) Upon visiting, take care of candle and ground maintenance.
- 6) Park only in the designated parking areas.

Section 7. FEES OF THE NEW PUBLIC CEMETERY OF CARMEN, SURIGAO DEL SUR- The fees are as follows:

Compartmentalized Readymade Pantheon - Fifteen Thousand Pesos (Php15,000.00)

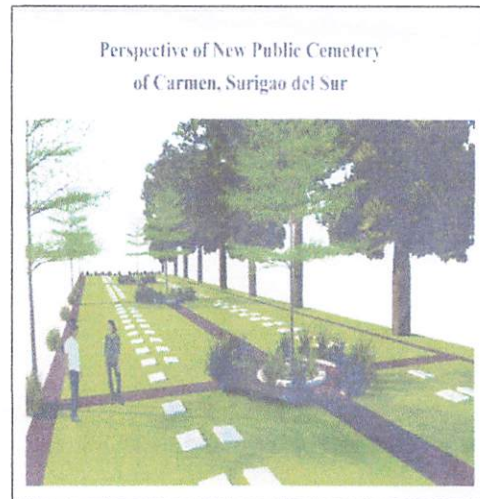
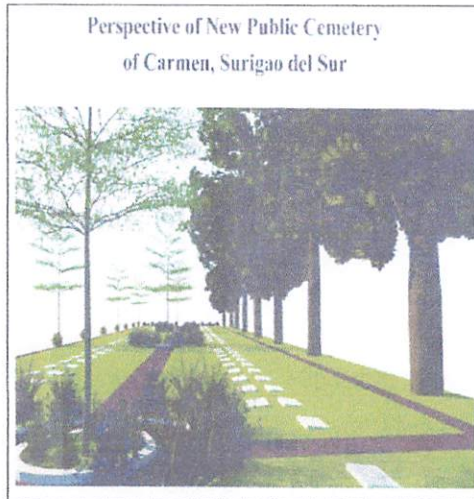


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**Underground Readymade Pantheon
(at Garden Cemetery (covered rental tent,
chair, and table)**

- Fifty Thousand Pesos (Php50,000.00)



Section 8. CRITERIA FOR THE ACQUISITION OF READY-MADE PANTHEON PROCEDURES FOR INDIGENT - Indigent individuals who cannot afford to purchase a ready-made pantheon are permitted to acquire one, provided they obtain a Certification of Indigency from the Municipal Social Welfare and Development (MSWD) Office. To receive this certification, the individual must submit a formal request to the MSWD Office, along with any required documentation that demonstrates their financial status. Upon approval, the certification must be presented to the cemetery committee to facilitate the allocation of a ready-made pantheon. However, the final decision on the allocation is still determined by the cemetery committee.

To qualify as an indigent individual and be eligible for the acquisition of a ready-made pantheon, the following criteria must be met:

- 1) The individual's total monthly household income must be below Five Thousand Pesos (Php5,000.00).
- 2) The individual shall present recent pay slips, tax returns, or a certification of non-income if unemployed.
- 3) The individual must be unemployed, underemployed (working part-time or temporary jobs), or unable to work due to health reasons.
- 4) The individual shall show either of the following: employment records, medical certificates, or a statement of non-employment.
- 5) The individual must be living in substandard housing, temporary, shelters, or be homeless.
- 6) The individual must show proof of social welfare assistance, such as benefit letters or subsidy receipts.
- 7) The individual must provide a notarized affidavit attesting to their financial status and inability to afford a ready-made pantheon.

Section 9. DEPOSITORY OF BONES - After a period of ten (10) years, the lessee can utilize the same tomb they previously purchased provided that they will coordinate with the committee and seek approval. After the committee's approval the lessee shall pay the amount of Five Thousand Pesos (Php5,000.00) and shoulder all cost for the tomb opening and covering. Upon reacquisition, the lessee

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may either lay the new cadaver above the interred bones or arrange the bone remains properly inside to maintain the dignity of the deceased.

Section 10. GUIDELINE AND FEES - Any individual seeking to have their remains buried in the New Public Cemetery of Carmen, Surigao del Sur must adhere to the guidelines and fees provided below:

Procedure:

Step 1. Confirm availability of readymade pantheon and lot through verification and inspection

Step 2. Make payment to the Treasury Office

Step 3. Schedule burial

Step 4. Hire mason and laborer for tomb covering

Step 5. Day of burial

Step 6. Maintenance of the purchased lot and pantheon

LOT/TOMB ALLOCATION:

Lot/Tomb Selection: Plots are allocated on a first-come, first-served basis Reservation is not allowed.

Special requests for specific plots may be granted depending on approval of the Public Cemetery Committee

Lot/Tomb Maintenance: Plots are maintained by the park staff Families are allowed to perform additional maintenance with prior approval.

Payment: Payment will be made directly to the Municipal Treasurer upon application for a burial permit prior to the construction thereon of any structure whether permanent or temporary, or to the interment of the deceased.

VISITATION AND CONDUCT:

Decorum: Visitors are kindly requested to maintain a demeanor of respect during their time in the memorial park, refraining from loud or disruptive behavior that may disturb other visitors or disrupt the tranquil atmosphere.

Photography: Photography for personal remembrance is permitted; however, commercial photography or filming requires prior approval from the committee.

Environmental Respect: Visitors are encouraged to help preserve the natural beauty of the park by disposing of litter properly and refraining from damaging planted areas.

Section 11. FUNDING/OPERATING COST - All costs pertaining to the operation of the New Public Cemetery of Carmen, Surigao del Sur shall be charged to available funds of the Local Government thru Local Economic Enterprise and subsidized to LGU of necessary and subject to the usual accounting and auditing rules and regulations.

Section 12. CONSTRUCTION OF READYMADE TOMB BY ENGINEERING OFFICE - Uniform tomb and maintain the ground orderliness and cleanliness, and the construction of the tomb underground and compartmentalized will be done by the Engineering Office.



Section 13. PROHIBITED TRANSACTION - All transaction made outside the Local Economic Enterprise Office with unauthorized person/s are hereby declared unlawful Payment shall be made at the Municipal Treasurer’s Office only.

Section 14. PENALTIES - Concerned public Officials and employees found violating or refuses to implement the provisions of this ordinance or any parts hereof, and private individuals who violate the pertinent provisions hereof, shall suffer the following penalty without prejudice to the filing of administrative complaint in the proper agency, to wit:

- First Offense** - Five Hundred Pesos (Php500.00)
- Second Offense** - One Thousand Five Hundred Pesos (Php1,500.00)
- Third Offense** - Two Thousand Five Hundred Pesos (Php2,500.00)

Section 15. SEPARABILITY CLAUSE - If for any reason, any part or provision of this ordinance is declared invalid, null and void, the other parts of provisions hereof which are not affected thereby shall continue to be in full force and effect.

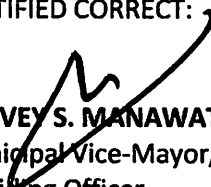
Section 16. REPEALING CLAUSE - Existing ordinance or regulations of the Local Government of Carmen, Surigao del Sur that are inconsistent with the provisions of this ordinance are repealed, amended or modified accordingly.

Section 17. EFFECTIVITY - This Ordinance shall take effect immediately upon its approval.

ENACTED this 17th day of September, 2024 at Carmen, Surigao del Sur.

I HEREBY ATTEST to the correctness of the foregoing ordinance.


MA. JULINA T. BORDA- JUTILO, LLB., J.D.
Secretary to the Sangguniang Bayan

CERTIFIED CORRECT:

HARVEY S. MANAWATAO
Municipal Vice-Mayor/
Presiding Officer

APPROVED:

JANE V. PLATA
Municipal Mayor